



DEPARTMENT OF THE NAVY

NAVAL SURFACE WARFARE CENTER
CRANE DIVISION
300 HIGHWAY 361
CRANE INDIANA 47522-5001

IN REPLY REFER TO:

J&A No. CR-23039
Code: WXP
N0016423RWP01

(CLASS) JUSTIFICATION AND APPROVAL FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity

Naval Sea Systems Command (NAVSEA), Naval Surface Warfare Center, Crane Division (NSWC Crane), Radar and IR/RF Systems Contracts Branch, code 0241.

2. Description of the Action Being Approved

Award of a Firm Fixed Price (FFP) Indefinite-Delivery, Indefinite-Quantity (IDIQ) sole source contract for manufacture, evaluation, and repair of the AN/SPQ-9B Bull Gear Bearing, in support of the AN/SPQ-9B Radar Antenna Restoration Program to Kaydon Corporation, DBA: Kaydon Bearings Division, 2860 McCracken St, Muskegon, MI 49441 CAGE 32828.

3. Description of Supplies/Services

The requirement is for the manufacture, evaluation and refurbishment of the SPQ-9B Bull Gear Bearing. The finished Bull Gear Bearing must meet the form, fit, and function requirements of the AN/SPQ-9B Antenna. The AN/SPQ-9B Bull Gear Bearing is integral in the rotation of the antenna on the pedestal.

This will be for a maximum of \$1,325,324.42 over a five-year period and funded with appropriations from Navy Operation and Maintenance (O&MN) and Other Procurement Navy (OPN). An estimate of the proposed contract utilization is listed in the following table.

Estimated Dollar Value

	FY24 - 28 Total
O&MN	\$1,183,046.96
OPN	\$142,277.46
Total	\$1,325,324.42

Detail

	FY24 – 28 Total
Manufacture	\$634,998.18
Evaluation	\$24,768.48
Refurbishment	\$665,557.76
Total	\$1,325,324.42

Deliveries will be delineated in each individual delivery order. The Government's minimum needs have been verified by the certifying technical and requirements personnel.

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 2304(c) (1) only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority

AN/SPQ-9B Bull Gear Bearing is integral in the rotation of the antenna on the pedestal. The Government does not own the data rights to the drawing for the Bull Gear Bearing. Rotating Precision Mechanisms builds the 9B pedestal. The Bull Gear Bearing is a part of the 9B pedestal. Rotating Precision Mechanisms contracted to Avon to create the Bull Gear Bearing. Kaydon Corporation bought out Avon therefore, Kaydon Corporation now has the proprietary property. Kaydon is the only company that owns the detailed drawings, repair procedures, and testing procedures needed to evaluate, refurbish, and manufacture the bearing. The Government inquired about the contractor selling the TDP, and a response was received on November 17, 2022 from strategic account manager, Scott Herrala, that they do not have any interest in doing so. Without these documents, no other vendor could evaluate or refurbish the bearing without significant duplication of cost to reverse engineer the bearing to develop the technical data needed.

It would not be cost effective to establish another source for the Bull Gear Bearing. It is estimated it would take a minimum of one year and \$1,048,991 to verify another source of repair of the Bull Gear Bearings. This cost was calculated based on the following factors: development of specification and overhaul process with tooling, cost of overhaul, shock testing to include test plan development, fixture development, fixture fabrication and actual shock testing as well as vibration testing and developing QA to ensure asset meet conformance. This estimated cost does not include the cost for installation into an antenna and testing on an active platform, which would cost in excess of \$268,380 and a minimum of one year to complete.

The program does not have the required funding to establish another source. In addition, the program cannot encounter a two-year delay. It would seriously jeopardize installation schedules and fleet readiness. These Bull Gear Bearings are an integral component of the AN/SPQ-9B Antenna System. Without the Radar Antenna, the fleet would be vulnerable to sea level and low altitude air attack because there is no operational surface search radar. The Bull Gear Bearing is a "single point of failure". Therefore, if the Bull Gear Bearing fails, the radar fails to detect any enemy incoming ships or aircraft. There are no equivalent backup systems aboard U.S. Navy ships equipped with AN/SPQ-9B radars that provide surface level protection/detection.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable

The requiring technical activity (RTA) conducted market research in accordance with FAR Part 10. FAR 10.001(a)(2) which requires market research appropriate to the circumstances. The market research included a search in GSA Advantage, Ability One, and general internet inquiries, as well as searching previous purchases of similar/identical acquisition purchases.

The Contract Specialist issued a Sources Sought notice, N0016423SNB03, which was posted in accordance with Defense Federal Acquisition Regulation Supplement PGI 206.302-1(d) on October 06, 2022. One response was received from Marberry Machine on October 20, 2022. The RTA reviewed the submitted information and determined that Marberry Machine will not be capable to perform the requirement. Marberry does not have access to the proprietary TDP and without the TDP Marberry will not have the specifications to manufacture, evaluate or repair the Bull Gear Bearing. The proprietary TDP is not owned by the Government. Additionally, Marberry Machine did not submit information to indicate they repair/overhaul bearings, which is necessary for this requirement.

To further identify possible sources and in accordance with DFARS 205-71, the proposed contract is anticipated to be synopsized on the Government Point of Entry (GPE), SAM.gov website on December 08, 2022.

To date, only one additional party has expressed interest concerning this requirement which was evaluated as not able to meet the requirements. There is one known technically capable source for this requirement, Kaydon Corporation. Any additional responses received will be evaluated to determine whether to conduct a competitive procurement.

7. Determination of Fair and Reasonable Costs

The contracting officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A is fair and reasonable.

8. Actions to Remove Barriers to Competition

For the reasons set forth in Paragraph 5, NSWC Crane has no plans at this time to compete future contracts for the types of supplies covered by this document. If other potential sources emerge, NSWC Crane will assess whether competition for future requirements is feasible.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

[REDACTED]

Requirements Cognizance:

[REDACTED]

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[REDACTED]

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Competition Advocate Approval

Upon the basis of the above justification, I hereby approve, as competition advocate, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 2304(c)(1).

[REDACTED]